

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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HARRY WILSON

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ANDREW CANCEL, SHIELD 12445, AND POLICE
SARGENT HANSEL DURAN, SHIELD 5012,
Defendants.

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Index No.

Date Purchased:

Plaintiff Designates
as county of trial
BRONX

Venue basis:

Situs of Occurrence

SUMMONS

Plaintiff resides at
520 East 137th Street
New York, NY
New York County

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
January 13, 2017

Defendants' addresses

THE CITY OF NEW YORK,
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

PO Andrew Cancel
PSA 7
737 Melrose Ave
Bronx, NY 10455

Sgt Hansel Duran
PSA 7
737 Melrose Ave
Bronx, NY 10455


NEWMAN, O'MALLEY & EPSTEIN, LLC.
Attorneys for Plaintiff
217 Broadway - Suite 500
New York, N.Y. 10007
(212) 233-1050

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
HARRY WILSON

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ANDREW CANCEL, SHIELD 12445, AND POLICE
SARGENT HANSEL DURAN, SHIELD 5012,

Defendants.
-----x

Plaintiff, HARRY WILSON by his attorneys, NEWMAN, O'MALLEY &
EPSTEIN, LLC, complaining of the defendants herein, upon information
and belief, respectfully allege:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, defendant THE
CITY OF NEW YORK was and still is a municipal entity existing under
and by virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, defendant,
THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal
entity existing under and by virtue of the laws of the State of New
York.

3. That at all times hereinafter mentioned, defendants
P.O. ANDREW CANCEL, Shield #12445 and SGT. HANSEL DURAN, Shield 5012
were employees of the Defendant New York City Police Department and
assigned to PSA 7.

4. That on or about the 11th day of August, 2016, within
ninety (90) days after the claims herein sued upon arose, the

plaintiff filed a Notice of Claim in writing, sworn to by plaintiff individually, and served upon the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, which Notice of Claim set forth the names and post office addresses of the plaintiff and of his attorneys, the nature of the claim, the time when, the place where, and the manner in which the claims arose, and the items of damage or injuries claimed to have been sustained so far as then practicable.

5. That more than ninety (90) days have elapsed from the presentation of the Notice of Claim and the statutory Notice of Claim hearing was held November 4, 2016.

6. That more than thirty (30) days have elapsed from the presentation of the aforesaid Notices of Claim and the defendants have failed and neglected to settle or adjust the claim.

7. That this action is commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim is based.

8. That at all times hereinafter mentioned plaintiff, HARRY WILSON, was a resident of the County of New York, City and State of New York.

9. That on or about July 5, 2016, at about 1-2am, at 137th Street and Brook Avenue, Bronx, New York and continuing, plaintiff, Harry Wilson was wrongfully, without provocation and without probable cause, subjected to the excessive use of force by defendants, their agents, servants or employees, and plaintiff was assaulted, battered, injured, forcibly frisked, imprisoned, by defendants PO Andrew Cancel

and Sgt Hansel Duran and Police Officer bearing tax registry number 956485, and others, and maliciously prosecuted, under 2016BX029116 Bronx County, by members of the New York City Police Department, its agents and/or employees when.

10. As a result of the foregoing, plaintiff was caused to sustain damage and personal injury, including, but not limited to a fractured mandible, deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, loss of personal effects, medical expenses and was caused to expend sums for legal services and other expenses.

11. That defendants' excessive use of force and conduct in detaining, assaulting, battering, threatening and otherwise abusing the plaintiff as aforementioned under the circumstances of this case, and imprisoning, and maliciously prosecuting was so egregious as to deviate from acceptable police conduct and police activity as to demonstrate an intentional, wanton and/or reckless disregard for proper procedures and the rights of the plaintiff.

12. As a result thereof, plaintiff was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c).

**AS AND FOR A SECOND CAUSE OF ACTION
FOR VIOLATION OF 42 OF THE
UNITED STATES CODE SECTION 1983
AS AGAINST THE CITY OF NEW YORK AND
THE NEW YORK CITY POLICE DEPARTMENT**

13. Plaintiff, repeats, reiterates, and re-alleges each and every paragraph of this complaint numbered "1" through "12", with the

same force and effect as if more fully set forth herein at length.

14. In using excessive force and in assaulting, battering, harassing, abusing, and detaining plaintiffs, defendants violated plaintiff's constitutional rights under the 4th amendment of the Constitution of the United States of America to be secure in their person, house, car, papers, and effects, against unreasonable searches and seizures.

15. In using excessive force and assaulting, battering, harassing, abusing, and detaining plaintiff, defendants violated plaintiff's constitutional rights under the 5th amendment of the Constitution of the United States of America not to be held to answer for a crime, unless on a presentment or indictment of a Grand Jury, not to be put in jeopardy of life and limb, nor to be compelled in any criminal case to be a witness against oneself, nor be deprived of life, liberty, or property, without due process of law.

16. In using excessive force and in assaulting, battering, harassing, abusing, and detaining plaintiffs, defendants violated plaintiffs' constitutional rights under the 14th amendment of the Constitution of the United States of America to not be deprived of life, liberty, or property, without due process of law and not to be denied the equal protection of the laws.

17. That defendants wantonly, willingly and knowingly deprived plaintiff of his Constitutional rights as heretofore mentioned by assaulting and battering him, and by rounding him up in a random, capricious, round-up approach, with no warrant.

18. That defendants servants/employees/agents were negligently trained, supervised, and monitored and failed to promulgate and put into effect appropriate rules, regulations and procedures to be governed by so as to prevent the willful disregard of plaintiff's humane and constitutional rights thereby violating plaintiff's 4th, 5th, and 14th amendment rights guaranteed by the Constitution of the United States and plaintiff's Civil Rights as set forth by Section 1980, et seq. of Chapter 42 of the United States Code.

19. That the willful disregard of plaintiff's constitutional rights by defendants were in violation of Title 42 US Code Section 1983 as hereinbefore alleged was the result of the official policy of the City of New York Police Department.

20. That the willful disregard of plaintiff's constitutional rights and the defendants violation of 42 US Code 1983 as hereinbefore alleged occurred because of the customs followed by the defendants in such cases.

21. Defendants agents/servants/employees acted with deliberate indifference to the plaintiff's constitutional rights as hereinbefore set forth in that said defendants failed to be adequately trained, supervised, and disciplined in their police procedures and in matters involving investigation, detention and arrest, and processing of suspects and more particularly the plaintiffs, and in promulgating a policy of excessive use of force and warrant-less searches and seizures.

22. As a result thereof, Plaintiff Harry Wilson was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c).

**AS AND FOR A THIRD CAUSE OF ACTION
FOR ATTORNEYS FEES**

23. Plaintiff, repeats, reiterates, and re-alleges each and every paragraph of this complaint numbered "1" through "22", with the same force and effect as if more fully set forth herein at length.

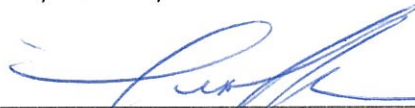
24. Pursuant to Title 42 US Code Section 1983, plaintiff is entitled to recover reasonable attorneys fees for the violation of said statutes.

25. As a result thereof plaintiff is entitled to recover such amount as and for attorneys fees as to the court may seem reasonable.

WHEREFORE, plaintiff demands judgment against the defendants in the First Cause of Action, in the Second Cause of Action, and together with reasonable attorneys fees as demanded in the Third Cause of Action in amounts in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (c), together with the costs and disbursements of this action.

Dated: New York, New York
January 13, 2017

Yours, etc.,



NEWMAN, O'MALLEY & EPSTEIN, LLC
Attorneys for Plaintiff
217 Broadway - Suite 500
New York, New York 10007
(212) 233-1050

**INDIVIDUAL VERIFICATION
AFFIDAVIT**

STATE OF NEW YORK
COUNTY OF NEW YORK SS.:

HARRY WILSON , being duly sworn, deposes and says:

I am the plaintiff in the within action and I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein alleged upon information and belief, and those matters I believe to be true. The grounds of my belief as to all matters not stated upon my knowledge are documents memoranda and other records contained in my attorney's legal file.

Harry Wilson
Harry Wilson

Sworn to before me this
13th day of January, 2017

[Signature]

NOTARY PUBLIC

ROBERT J. REYES
Notary Public, State of New York
No. 01RE61010309
Qualified in Kings County
Commission Expires November 10, 2019